APPELLATE COURT
STATE OF CONNECTICUT

DOCKET NO. FST CR20-0241178-T	:	SUPERIOR COURT
STATE OF CONNECTICUT	:	J.D. OF STAMFORD-NORWALK
VS.	:	AT STAMFORD
MICHELLE TROCONIS	:	JUNE 10, 2024

PETITION FOR REVIEW OF DENIAL OF APPEAL BOND

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ORAL ARGUMENT REQUESTED

PETITION FOR REVIEW OF DENIAL OF APPEAL BOND

Pursuant to Connecticut General Statutes §§ 54-95(b), 54-63f and 54-63g; Connecticut Practice Book ("PB") §§ 43-2, 60-1, 60-2, 60-3, 66-6, and 78a-1; the fifth and fourteenth amendments to the United States Constitution; Article I, §§ 8 and 9 of the Connecticut Constitution; and the doctrines of *State v. Qinxuan Pan*, 345 Conn. 922 (2022) and *State v. McCahill*, 261 Conn. 492 (2002), the defendant-petitioner, Michelle Troconis, by and through counsel, petitions the Appellate Court for review of the May 31, 2024 oral ruling of the Superior Court for the Stamford-Norwalk Judicial District (Randolph, J.) denying her oral motion for bond on appeal following her judgment of conviction. In the nearly five years since Ms. Troconis was first arrested, there has been no occasion when she was out of compliance with any conditions of release. Moreover, the trial court made no findings – nor did the state argue – that custody was necessary to provide reasonable assurance of her appearance in court pending the outcome of her appeal. The defendant submits that there are substantial preserved appellate issues in this case, including insufficiency of evidence for the most serious crimes of conviction, raising substantial questions of law and fact that may result in reversal, a new trial, or a reduced sentence. The defendant also relies on PB §§ 60-1 and 60-3, and the Court's exercise of its supervisory and common law authority over the administration of justice under PB § 60-2, to grant the requested relief. The state opposes the defendant's petition.

I. Brief History of the Case

On the night of June 1, 2019, the defendant, at the time a resident of Farmington, was arrested and charged by warrant with violations of Conn. Gen. Stat. § 53a-155 (tampering with or fabricating physical evidence) and Conn. Gen. Stat. § 53a-165aa (hindering prosecution in the first degree)[1]. The warrant was

[1] Later amended to Hindering Second Degree, Conn. Gen. Stat. §53a-166.

signed that evening by a Superior Court judge (Blawie, J.). The defendant was held without bond, because of a court-imposed *ex parte* order in the warrant to deny release until her court arraignment the following Monday. Two days later she was arraigned in the Norwalk Superior Court G.A. #20 under docket CR19-0148553-T.[2] On September 5, 2019, the defendant presented herself at the Connecticut State Police barracks in Bridgeport on a second warrant signed by a Superior Court judge (Blawie, J.), based on an affidavit by the same State Police detective, charging her with an additional violation of Conn. Gen. Stat. § 53a-155, (tampering with physical evidence) that allegedly occurred on May 27, 2019 (*i.e. before* her first arrest) in Avon. She was released on a $100,000.00 surety bond. The defendant was subsequently arraigned in docket # FST CR19-0167364-T. [3]

On January 7, 2020, the defendant was arrested in West Hartford and charged by warrant in a single count of violation of Conn. Gen. Stat. §§ 53a-48 and 53a-54a (conspiracy to commit murder), which was alleged to have occurred on May 24, 2019 in New Canaan. The arrest was pursuant to a warrant issued by the same judge (Blawie, J.) based on an affidavit by the same detective. All three arrests pertained to the same set of events surrounding the unexplained disappearance of Jennifer Dulos on May 24, 2019. Thereafter the defendant was arraigned on January 8, 2020 in the Superior Court, G.A. #1 in Stamford, under Docket No. CR-20-0241178-T and released on an additional $1.5 million bond with conditions of house arrest and intensive pretrial supervision, along with GPS monitoring through an ankle bracelet.

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[2] Prior to jury selection in September, 2023, the state filed a consolidated long form information under Docket No. FST CR20-0241178-T, and entered nolles in the two older 2019 docket numbers.

[3] See footnote 2, *supra*.

The defendant filed a motion for speedy trial in September 2023. Although the court (Randolph, J.) granted the motion and jury selection commenced in October 2023, the court, over the defendant's objection, scheduled the trial for January 8, 2024. In the interim several chosen jurors were excused due to intervening events requiring selection of additional jurors in early January 2024. The defendant's motion to dismiss due to the denial of a speedy trial was denied.

The jury trial commenced on or about January 9, 2024 and concluded with a jury verdict of guilty on all counts on March 1, 2024. At that time the court increased the defendant's bond over objection to $6 million and she was remanded into custody, despite the fact that in the nearly five years that she was released on substantial financial and non-financial conditions, she never violated a single one. The only ground given is that she no longer was cloaked with the presumption of innocence.

Thereafter on May 31, 2024 the court (Randolph, J.) sentenced the defendant to a total effective term of 20 years, suspended after 14 ½ years, to be followed by five years probation. After sentence was imposed, defense counsel orally announced the defendant's intention to appeal the judgment and moved the court to set an appeal bond. The court denied the motion making no findings that custody was necessary to assure the defendant's appearance in court or for public safety. The court made no factual findings about appellate release at all. The relevant transcript portion has been ordered. [Appendix A-207]

The defendant filed on June 7, 2024 a signed Form JD-CR-73 (Application for Waiver of Fees, Costs and Expenses and Appointment of Counsel on Appeal).

II. Specific Facts Relied Upon

1. The defendant previously posted $2.1 million in total bonds through a surety company and remained compliant in all respects and with all terms while in

the community since her first presentment on June 3, 2019 until her conviction and current incarceration. She surrendered her passport and was allowed to travel within the United States.

2. The defendant, now 49, is a natural born United States citizen with no prior criminal record of any sort, and resided until the trial and subsequent incarceration with her minor teenage daughter. She maintained a business and lived and worked in the Farmington, Connecticut area since she moved to the state in 2017, but was permitted to travel regularly to Miami, Florida, where her father, mother and sisters maintain residences, and to Aspen, Colorado, where she owned a condominium and assisted in her daughter's athletic training as a skiier. She attended every day of the trial with her family.

3. The defendant is currently incarcerated at York Correctional Institution.

4. The state objects to the defendant's release on bail.

III. Legal Grounds Relied Upon

Superior Court judges possess the power to modify terms and conditions of release "at any time." Conn. Gen. Stat. § 54-69b; PB § 38-13. Connecticut statutes and Practice Book rules specify within that inherent power the right to release a defendant on bail during the appeals process. Conn. Gen. Stat. § 54-95(b); PB § 43-2b. Both provisions utilize the term "may be released" – rather than "shall" – until "final disposition of his or her case upon . . . appeal," limiting release orders only if the court "finds custody to be necessary to provide reasonable assurance of the person's appearance in court." PB § 43-2b.

A defendant aggrieved by an order of the Superior Court "concerning release" may petition for review to this Court. Conn. Gen. Stat. § 54-63g; PB § 78a-1. In fact, the exclusive procedure to challenge an order pertaining to bail is by way of petition for review with this Court pursuant to § 54-63g; *See State v. Fernando A*., 294 799 Conn. 1, 5 n. 3 (2009) ("a defendant's exclusive

nondiscretionary remedy from an order concerning conditions of release is a petition to the Appellate Court pursuant to . . . § 54-63g"); *State v. Dellacamera*, 110 Conn. App. 653, 657 (2008) ("[f]or persons aggrieved by orders concerning release in criminal cases, the General Assembly has provided the exclusive remedy of the petition for review").

Although bail on appeal is not a federal constitutional right in all cases, our Supreme Court in *State v. McCahill, supra*, 261 Conn. at 510 (a case involving sexual assault), made clear that the court's power to set bail after a criminal conviction is a common law one derived from the colonial era:

> It is manifest, however, that the judicial branch has long had the power to submit a defendant to bail following conviction. This power has existed in the judicial branch since the earliest days of Connecticut's statehood and even before. In an early Superior Court case, the court stated: "After verdict of the jury finding the prisoner guilty and before judgment rendered, [the attorney] moved that the prisoner might be admitted to bail to appear and abide the judgment of Court — which was admitted. . . . There had been some doubts with the Court formerly whether the Court had right to bail after conviction and before judgment — but it was now settled — and the Court admitted bail to be taken." *State v. Beach*, 2 Kirby (Conn. Sup.) 20, 21 (1786-87).

McCahill quoted from *State v. Vaughan*, 71 Conn. 457 (1899), which expanded on our judges' inherent power to grant postconviction bail: "The power to admit to bail after conviction is not a statutory but a common-law power . . . [B]ail is then a matter of absolute discretion, to be exercised by the court, however, with great caution, and rarely to be allowed when the crime is serious. But the power to admit to bail is inherent in the court so long as the prisoner is in its custody; that is, until he is taken in execution." (Emphasis deleted.) *Id*., 460-61. As the *McCahill* Court further noted: "The power to admit to bail exists not

simply as an exercise of the judicial prerogative, but so that a defendant's right to bring an appeal will not result in a meaningless proceeding." *Id*. at 512. Therefore, "if the right to bail and stay of execution pending appeal did not exist, 'the right of appeal would be destroyed or seriously hampered, [because] the period of the pendency and determination of the appeal by this court might be considerable . . . .'" (Internal quotation in original). Id. at 512-13, *quoting Carino v. Watson*, 171 Conn. 366, 369 (1976); *Winnick v. Reilly*, 100 Conn. 291, 298 (1924). "The power to stay execution and admit to bail is necessary so that a defendant's right to review of the judgment will not become an exercise of form without substance." *McCahill, supra*, 261 Conn. at 513.

Attached to this petition are some of the pleadings and substantive issues presented below that the defendant contemplates presenting for review on appeal. This was a seven-week jury trial, not including jury selection – which lasted about a month – or the many additional weeks of evidentiary pretrial hearings on substantive motions to dismiss and suppress that began in the summer of 2023 and lasted into December. It is premature at this juncture, therefore, to identify *all* possible meritorious appellate issues, or even which ones should be abandoned because of the court's limitation on brief word count, without review by appellate counsel (which may or may not include the undersigned) of the thousands of pages of transcripts and hundreds of exhibits. However, the attached pretrial and trial motions and respective rulings in this case are intended to demonstrate to this Court that there are numerous substantive and fully preserved constitutional, legal and evidentiary issues in the trial court record, and that an effective appellate brief will require detailed familiarity with multiple complex issues on an immense record spanning five years of litigation. Several of these issues, if successful, will

not only result in reversal of the conviction, but to dismissal of charges.[4] That indicates there will be an inordinate and extended delay before an appeal can be briefed, argued and decided. Such delay – while Ms. Troconis sits in prison – is one consideration why appellate bail should be granted.

Of course, "once a state makes provision for [postconviction] bail, the Eighth and Fourteenth Amendments require that it not be denied *arbitrarily or unreasonably."* (Emphasis added.) *Finetti v. Harris,* 609 F.2d 594, 599 (2d Cir. 1979); *Brown v. Wilmot,* 572 F.2d 404, 405 (2d Cir.1978). In fact, the only disqualifying factor under Connecticut law for post-conviction release is if incarceration is "necessary to provide reasonable assurance of such person's appearance in court." Conn. Gen. Stat.§ 54-63f; P.B. § 43-2. No such findings were either argued by the state nor found by the court.

Recognizing, also, that post-conviction release is a matter of judicial discretion, the defendant suggests there are some standards that the Court may wish to adopt in its review here. Under the more restrictive federal requirements of the Bail Reform Act, 18 U.S.C. § 3143(b)(1), for example, a judge must find that "the person poses no risk of flight and no danger to the community during release" and that "the appeal raises a substantial question of law or fact likely to result in reversal, a new trial, or a reduced sentence, and is not interposed for the purpses of delay." *United States v. DiSomma*, 951 F.2d 494, 496 (2d Cir. 1991) (internal quotations omitted). On the other hand, the defendant suggests this Court adopt a modified version of the rule for determining if a trial court abuses its discretion when considering denials of petitions for certification to appeal from

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[4] This non-exclusive list includes the absence of *any* evidence in the case that Ms. Troconis possessed advance knowledge of Fotis Dulos' plan to kill his wife, even if the state presented evidence that she provided police interrogators with conflicting versions of her actions and movements on May 24, 2019, that the state argued demonstrated a "consciousness of guilt." Other potentially dispositive issues include a denial of the right to a speedy trial and conducting a trial in the wrong judicial district. See Appendix.

habeas corpus decisions. *See, Simms v. Warden*, 229 Conn. 178 (1994) and *Simms v. Warden*, 230 Conn. 608, 612 (1994). That standard requires that a defendant demonstrate possible appeal issues that "are debatable among jurists of reason; that a court could resolve the issues [in a different manner]; or that the questions are adequate to deserve encouragement to proceed further." *See, Smith v. Commissioner*, 225 Conn. App. 822 (slip op. June 4, 2024) (restating the *Simms* standard). The issues raised and contained in the attached appendix certainly qualify under all three of the prongs articulated above, as well as under the more restrictive test for appellate bond in the federal Bail Reform Act.

Finally, the defendant notes that *if* the court grants the defendant's instant petition and remands for a hearing on conditions of release during the pendency of the appeal, the amount of monetary bail must not be prohibitive and result in *de facto* denial of release simply because it is unaffordable. When granted, bail should be set at the lowest amount that is consistent with the "essential purpose" of an appeal bond, which, as stated, is to "secure the appearance of the defendant and [her] submission to the judgment of the court." *State v. McCoy,* 4 Conn. Cir. 109, 116 (1966). Both monetary and nonfinancial conditions must comport with the least restrictive provisions of Section 54-63f and PB § 43-2(a). After the defendant's conviction, the court increased the defendant's bail to $6 million and remanded her to custody without any factual findings why that astronomical amount was necessary. At a later date, a different judge (White, J.) added conditions, that if the defendant were able to post the $6 million, then she must become resident in Connecticut and remain on 24/7 house arrest, even though the state initially argued for a higher bond because of the defendant's lack of continued residence in the state. She would have to pay for her own jail. The $6 million bail was well beyond the means of the defendant and her family and she remained incarcerated on that condition alone. If a common law right to appellate bond exists, it is axiomatic that it cannot be insurmountable. Bail in an "arbitrary or unreasonable" amount or imposition of conditions that preclude release

amounting to *de facto* detention may violate due process. *State v. Ayala*, 222 Conn. 331, 342 n.11 (1992); *State v. Menillo*, 159 Conn. 264, 269 (1970).

The U.S. Supreme Court in *United States v. Salerno*, 481 U.S. 739, 755 (1987), for example, set forth a test for weighing restrictions on liberty against any interests the government claims it is protecting. Where the only state interest is preventing flight, as Connecticut's post-conviction release rules state, "bail must be set by a court at a sum designed to ensure that goal, *and no more*." *Id.* (emphasis supplied) In *State v. Qinxuan Pan*, 345 Conn. 922, 951-52 (2022) our Supreme Court noted that Connecticut's bail statutes and the rules of practice require a trial court "state for the record" the "factors . . . that it considered and the findings that it made . . . that caused the court to impose the specific conditions of release that it imposed." The *Pan* case addressed both financial amounts of bail, and nonfinancial conditions. *See, id.* at 954 n. 25 ("We focus in particular on issues relating to the affordability of the bond amount because that is the subject of the present appeal. We recognize, of course, that a party may seek modification of the bond on other grounds, as well. Although it is not possible to predict with certainty, we anticipate that the basic framework set forth herein will provide adequate guidance when a motion for bond modification involves an issue other than affordability.") The defendant urges this Court to require the same exactitude when considering conditions on appeal.

Of course, here the trial court made no factual findings. It simply denied an appeal bond without considering other options or conditions. In light of the posture of this case, the defendant requests that this Court require the trial court to use the *Pan* parameters in determining what factors for release can be taken into account. The defendant further requests that the Court exercise its broad interpretation of its own rules pursuant to Practice Book §§ 60-1 and 60-3 to grant the relief sought.

CONCLUSION

Michelle Troconis is not in the same legal posture she enjoyed before her

conviction by a jury. She is no longer presumed innocent, and has been sentenced to a prison term of 14 ½ years. She was convicted as a conspirator, without a finding that she engaged in any act of violence herself. Nevertheless there are around two dozen substantial and preserved appellate issues which may result in her eventual reversal or exoneration. Since her initial arrest and release in 2019, she always remained compliant with all terms. No evidence suggests she poses a risk of flight. Nothing suggests she is a danger to anyone.

WHEREFORE, the defendant petitions this Court to grant review and reverse the trial court's denial of bail pending appeal.

THE PETITIONER – MICHELLE TROCONIS

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CERTIFICATION

I certify that this document complies with all the formatting requirements of Connecticut Practice Book § 66-3, and further certify that in compliance with Connecticut Practice Book § 62-7 and 66-3, the document does not contain any names or personal identifying information prohibited from disclosure by rule, statue, court order or case law; that it complies with all applicable Rules of Appellate Procedure true copy of the foregoing was sent, via electronic transmission, on the date of this pleading, to the following counsel of record:

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